

PASSED

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 17-028
Amendment to Title 5, Chapter 13, Section 5-1311.2
of the Chickasaw Nation Criminal Code
(Amendments)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has reviewed Title 5, Chapter 13, Section 5-1311.2 of the Chickasaw Nation Criminal Code and finds the need for revisions.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves the following amendments to Title 5, Chapter 13, Section 5-1311.2 of the Chickasaw Nation Criminal Code:

SECTION 5-1311.2

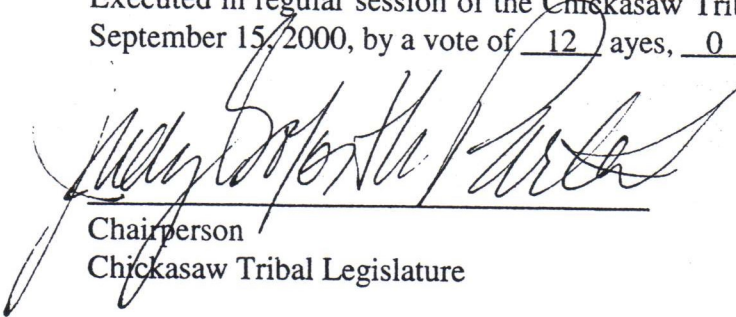
AMENDMENTS.

The Supreme Court shall have the power to request amendments to this Chapter except with respect to any of these rules relating to privileges. ~~As with any amendment, it is subject to passage by resolution of the Chickasaw Legislature and concurrence by the Governor, and, as long as the Court of Indian Offenses will be responsible for enforcement, all amendments must be further approved by the Bureau of Indian Affairs Secretarial approval. [Such amendments shall not take effect until they have been requested in writing to the Chickasaw Legislature by the Chief Justice and until the expiration of ninety (90) days after they have been so requested; but, if a majority of the Chickasaw Legislature within that time shall by formal affirmative written action disapprove any amendment so requested, it shall not take effect. The effective date of any amendment so requested may be deferred by a majority of the Chickasaw Legislature to a later date or until approved by them. Any rule whether proposed or in force may be amended by an Act or ordinance enacted by the Chickasaw Legislature. Any provision of law in force at the expiration of such time and in conflict with any such amendment not disapproved shall be of no further force or effect after such amendment has taken effect. Any proposed amendment creating, abolishing, or modifying a privilege shall have no force or effect unless it shall be approved by Act or ordinance of the Chickasaw Legislature. Upon becoming effective, all amendments made by the Chickasaw Nation Supreme Court shall be incorporated into this Title and thereafter have the force and effect of a Chickasaw Statute.]~~

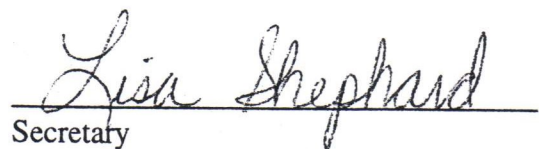
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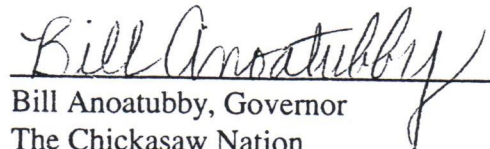
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on September 15, 2000, by a vote of 12 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: SEP 16 2000

CHICKASAW TRIBAL LEGISLATURE

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of the Chickasaw Nation Criminal Code
(Amendments)**

Explanation: This resolution approves the amendment of Title 5, Chapter 13, Section 5-1311.2 of the Chickasaw Nation Criminal Code. Upon review by the Chickasaw Tribal Legislature it was found that this section needed to be revised for clarity.

Requested By: Bill Anoatubby, Governor
The Chickasaw Nation

Presented By: Lisa Shephard, Chairman
Tribal Justice Committee